



WPF Duratec – Pacific Welding

MN-75018

Phase 1 Determination

Acquisition may be put into effect

9 June 2026

1. Determination and statement of reasons

Notified acquisition	WPF Duratec Pty Ltd (WPF Duratec) proposes to acquire 100% of the shares in Davhold Australia Pty Ltd, trading as Pacific Welding Australia (Pacific Welding) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, WPF Duratec, is a wholly owned subsidiary of Australian engineering, construction and remediation contractor Duratec Limited (Duratec) (ASX:DUR). WPF Duratec is a specialist engineering, fabrication and site services provider based in Western Australia. The target, Pacific Welding, is an Australian welding and fabrication company based in Newcastle, New South Wales. Pacific Welding specialises in the provision of project based welding, mechanical services and specialist fabrication to clients in the oil & gas, energy and mining industries.
Overlap and relationship between the parties	WPF Duratec and Pacific Welding (the Parties) overlap in the supply of the following project-based welding, mechanical and labour hire services (the Services): • structural, mechanical and piping fabrication and installation • pipelines and facilities construction • vessel fabrication • industrial asset maintenance services • specialised welding services • shutdown / outage / turnaround management. There is limited geographic overlap between the Parties in the supply of the Services as they operate in different states or territories (WPF Duratec in Western Australia and the Northern Territory, and Pacific Welding in New South Wales). There is no existing vertical or conglomerate relationship between the Parties, but there may be in the future absent the Acquisition as subcontracting arrangements are common in the industry.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the

	notification form, in response to a request for information, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • There is limited geographic overlap between WPF Duratec and Pacific Welding as they supply these services in different states and territories. Therefore, the ACCC considers that the Parties are not close competitors and likely compete for different customers. • The Parties would likely continue to be competitively constrained by a range of alternative suppliers of the Services, including AllType Engineering and Piping Solutions. • The ACCC considers that the Acquisition is unlikely to give WPF Duratec the ability or incentive to foreclose rivals accessing the Services offered by Pacific Welding due to the existence of the competitors identified above and the limited geographic overlap between the Parties. The ACCC received divergent views regarding competition from other suppliers of the Services (beyond those identified above), including Monadelphous, UGL, Civmec and M&S Fabrication, and the extent to which these companies provide the full range of Services offered by the Parties. The ACCC has taken this feedback into account in its competition assessment. The ACCC also received concerns from some market participants regarding consolidation within the industry more generally. However, these concerns were not sufficiently connected to a competition issue arising from the Acquisition.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act